

26STCP00278 26STCP00278

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-08-07

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Case Number: 26STCP00278 Hearing Date: August 7, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Andrea Sessions' Petition to Confirm Arbitration Award is continued to 09/18/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/28/2026, Petitioner is to file proof of service of the Petition and Notice of New Hearing Date in accordance with the statutory requirements. The proof of service is to be completed on Judicial Council Form POS-010. Failure to comply with this order may result in the Petition being denied.

Analysis:

On January 16, 2026, Petitioner Andrea Sessions ("Petitioner"), in propria persona, filed the instant Petition to Confirm Arbitration Award (the "Petition") against Respondent Kevin He ("Respondent"). The hearing on the Petition was initially set for May 22, 2026, and then continued to June 12, 2026 due to the Court's unavailability. (Notice of Hearing, 01/16/26; Minute Order, 04/14/26.)

At the hearing on June 12, 2026, the Court ruled that although Petitioner filed a Notice of Hearing Date, no proof of service of the Petition or of the Notice of the Hearing Date is on file. (Minute Order, 06/12/26.) The Court continued the hearing to give Petitioner an opportunity to provide Respondent with proper notice of the Petition and the continued hearing. (Ibid.)

On August 3, 2026, Petitioner filed a Proof of Service by Mail indicating that the Petition and Notice of New Hearing Date were served

upon Respondent by first-class mail. (Proof of Service by Mail, filed 08/03/26, ¶¶4-5.) The Court's previous order cited the relevant statutory provisions under which service must be effectuated. Specifically, Code of Civil Procedure, section 1290.4 requires that the petition and notice of hearing be served on Respondent "in the manner provided in the arbitration agreement for the service of such petition and notice" or "[i]f the arbitration agreement does not provide the manner in which such service shall be made . . . [s]ervice within this State shall be made in the manner provided by law for the service of summons in an action." (Code Civ. Proc., § 1290.4, subds. (a), (b).)

The parties' arbitration agreement does not provide for the manner of service of the Petition and Notice of Hearing. (Pet., Supp. Sessions Decl., filed 04/23/26, Exh. A.) Therefore, the Petition to Confirm and Notice of Hearing must be served upon Respondent in the manner of service for a summons. Service by first-class mail is not an authorized method for service of a summons. (See Code Civ. Proc., §§ 415.10, et seq.) Accordingly, the Court finds that the requirements of Code of Civil Procedure section 1290.4 remain satisfied.

The Court additionally notes that Petitioner must provide Respondent with at least ten days' notice of the Petition and Notice of New Hearing Date prior to the new hearing date. (Code Civ. Proc., § 1290.2.) The mail service upon Respondent was only six days prior to the August 7, 2026 hearing. (Proof of Service by Mail, filed 08/03/26, ¶¶4-5.)

Conclusion

Therefore, Petitioner Andrea Sessions' Petition to Confirm Arbitration Award is continued to 09/18/2026 at 10:00 am in Department 26 at the Spring Street Courthouse. By 08/28/2026, Petitioner is to file proof of service of the Petition and Notice of New Hearing Date in accordance with the statutory requirements. The proof of service is to be completed on Judicial Council Form POS-010. Failure to comply with this order may result in the Petition being denied.

Judicial Assistant to give notice.